

1.

CASE #	CASE NAME	HEARING NAME
CVPS2407985	ZENDA ESTATE, LLC VS POLO CLUB MAINTENANCE ASSOCIATION	CROSS-DEFENDANT POLO CLUB MAINTENANCE ASSOCIATION'S MOTION TO STRIKE CROSS COMPLAINT

Tentative Ruling: Moot as result of ruling on demurrer.

Responding party to provide notice pursuant to CCP 1019.5.

Motion to Strike

The court may, upon a motion made pursuant to CCP §435:

- (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.
- (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(CCP § 436.) On a motion to strike, as with a demurrer, “the court treats as true the material facts alleged in the complaint, as well as any facts which may be implied or inferred from those expressly alleged.” (*Washington Int’l Ins. Co. v. Superior Court* (1998) 62 Cal. App. 4th 981, 984, n. 2.) A motion to strike is the proper vehicle to attack a punitive damages claim where the facts alleged do not rise to the level of fraud, malice or oppression. (CCP §§ 435-436; *Truman v. Turning Point of Central Calif., Inc.* (2010) 191 Cal.App.4th 53, 63.)

Here, the instant motion is moot as result of Court’s ruling on accompanying demurrer that was sustained with leave to amend as to all causes of action.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2407985	ZENDA ESTATE, LLC VS POLO CLUB MAINTENANCE ASSOCIATION	CROSS-DEFENDANT POLO CLUB MAINTENANCE ASSOCIATION'S DEMURRER TO CROSS COMPLAINT

Tentative Ruling: Sustained.

Cross Complainants are granted one additional opportunity for leave to file a 1st Amended Cross Complaint within 10 days of this order becoming final.

Responding party to provide notice pursuant to CCP 1019.5.

This action arises from the claims alleged in Zenda Estates’ April 24, 2025 Second Amended Complaint (“SAC”) for: (1) Breach of Contract and (2) Declaratory Relief regarding the Settlement Agreement and Easement Agreement between Zenda Estates and PCMA.

Defendant PCMA filed a Verified Third Amended Cross Complaint on November 6, 2025 against Cross-Complainants and other Defendants alleging eight causes of action: (1) Breach of Contract, (2) Quiet Title, (3) Enforcement of Easement, (4) Express Indemnity, (5) Equitable Indemnity, (6) Declaratory Relief, (7) Petition for Writ of Mandate, and (8) Declaratory Relief C.C.P. § 526(a).